

ORC Ann. 5123.0417

Current with Legislation passed by the 131st General Assembly and filed with the Secretary of State through file 123 (HB 483).

Page's Ohio Revised Code Annotated > Title 51: Public Welfare > Chapter 5123: Department of Developmental Disabilities

§ 5123.0417 Programs for individuals under age 21 with intensive behavioral needs.

- (A) The director of developmental disabilities shall establish one or more programs for individuals under twenty-two years of age who have intensive behavioral needs, including such individuals with a primary diagnosis of autism spectrum disorder. The programs may include one or more medicaid waiver components that the director administers pursuant to [section 5166.21 of the Revised Code](#). The programs may do one or more of the following:
- (1) Establish models that incorporate elements common to effective intervention programs and evidence-based practices in services for children with intensive behavioral needs;
 - (2) Design a template for individualized education programs and individual service plans that provide consistent intervention programs and evidence-based practices for the care and treatment of children with intensive behavioral needs;
 - (3) Disseminate best practice guidelines for use by families of children with intensive behavioral needs and professionals working with such families;
 - (4) Develop a transition planning model for effectively mainstreaming school-age children with intensive behavioral needs to their public school district;
 - (5) Contribute to the field of early and effective identification and intervention programs for children with intensive behavioral needs by providing financial support for scholarly research and publication of clinical findings.
- (B) The director of developmental disabilities shall collaborate with the medicaid director and consult with the executive director of the Ohio center for autism and low incidence and university-based programs that specialize in services for individuals with developmental disabilities when establishing programs under this section.

History

152 v H 562, § [101.01](#), eff. 7-1-08; 153 v H 1, § [101.01](#), eff. 7-17-09; 153 v S 79, § 1, eff. 10-6-09; 2011 HB 153, § [101.01](#), eff. Sept. 29, 2011; 2013 HB 59, § [101.01](#), eff. Sept. 29, 2013; 2016 HB 158, § 1, effective Oct 12, 2016.

Annotations

Notes

Editor's Notes

Acts 2011, HB 153, § 815.20 provides: “The General Assembly, applying the principle stated in division (B) of [section 1.52 of the Revised Code](#) that amendments are to be harmonized if reasonably capable of simultaneous operation, finds that the following sections, presented in this act as composites of the sections as amended by the acts indicated, are the resulting versions of the sections in effect prior to the effective date of the sections as presented in this act:

“[Section 5123.0417 of the Revised Code](#) as amended by Am. Sub. H.B. 1 and Sub. S.B. 79 of the 128th General Assembly.”

Amendment Notes

The 2013 amendment substituted “[section 5166.21](#)” for “[section 5111.871](#)” in the second sentence of the introductory language of (A); and substituted “medicaid director” for “director of job and family services” in (B).

The 2011 amendment substituted “twenty-two” for “twenty-one” in the first sentence of the introductory language of (A).

153 v S 79, effective October 6, 2009, deleted “mental retardation and” preceding “developmental disabilities” throughout.

153 v H 1, effective July 17, 2009, deleted “Using funds available under [section 5112.371 of the Revised Code](#)” from the beginning of the introductory language of (A).

The 2016 amendment by HB 158, substituted “programs and individual” for “plans and individual” in (A)(2).

Commentary

Comment, Legislative Service Commission

[Section 5123.0417 of the Revised Code](#) is enacted by Am. Sub. H.B. 1 of the 128th General Assembly and Am. S.B. 79 of the 128th General Assembly. Comparison of these amendments in pursuance of [section 1.52 of the Revised Code](#) discloses that they are not irreconcilable so that they are required by that section to be harmonized to give effect to each amendment.

Page's Ohio Revised Code Annotated

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